

AGREEMENT FOR _____¹

BETWEEN

STATE BANK OF INDIA, _____²

AND

_____³

Date of Commencement : _____⁴

Date of Expiry : _____

¹ Type/nature/name of Agreement.

² Office/ Department/ Branch which is executing the Agreement or the nodal department in the matter.

³ The other Party (Contractor/ Service Provider) to the Agreement

⁴ Effective Date from which the Agreement will be operative.

Table of Contents

1. DEFINITIONS	4
2. SCOPE OF WORK	8
3. FEES /COMPENSATION	8
4. LIABILITIES/OBLIGATION	9
5. REPRESENTATIONS &WARRANTIES	11
6. GENERAL INDEMNITY	15
7. CONTINGENCY PLANS	15
8. TRANSITION REQUIREMENT	15
9. LIQUIDATED DAMAGES	16
10. RELATIONSHIP BETWEEN THE PARTIES	16
11. SUBCONTRACTING	17
12. INTELLECTUAL PROPERTY RIGHTS & OWNERSHIP	18
13. INSPECTION AND AUDIT	19
14. CONFIDENTIALITY	20
15. TERMINATION	23
15.1 TERMINATION FOR DEFAULT:	23
15.2 TERMINATION FOR INSOLVENCY:	24
15.3 TERMINATION FOR COVENIENCE:	24
16. DISPUTE REDRESSAL MECHANISM & GOVERNING LAW	25
16.1 DISPUTE REDRESSAL MECHANISM	25
16.2 GOVERNING LAW	25
17. POWERS TO VARY OR OMIT WORK	25
18. WAIVER OF RIGHTS	26
19. LIMITATION OF LIABILITY	26
20. FORCE MAJEURE	27
21. NOTICES	28
22. GENERAL TERMS & CONDITIONS	29
APPENDIX-A	32
APPENDIX-B	36
APPENDIX-C	41

This agreement (“Agreement”) is made at _____ (Place) on this _____ day of _____ 20__.

BETWEEN

State Bank of India, constituted under the State Bank of India Act, 1955 having its Corporate Centre at State Bank Bhavan, Madame Cama Road, Nariman Point, Mumbai-21 and its Global IT Centre at Sector-11, CBD Belapur, Navi Mumbai- 400614 through its _____ Department,⁵ hereinafter referred to as “**the Bank**” which expression shall, unless it be repugnant to the context or meaning thereof, be deemed to mean and include its successors in title and assigns of First Part:

AND

_____ ⁶ a private/public limited company/LLP/Firm *<strike off whichever is not applicable>* incorporated under the provisions of the Companies Act, 1956/ Limited Liability Partnership Act 2008/ Indian Partnership Act 1932 *<strike off whichever is not applicable>*, having its registered office at _____ hereinafter referred to as “**Service Provider/ Vendor**”, which expression shall mean to include its successors in title and permitted assigns of the Second Part.

The Bank and Service Provider are sometimes individually referred to as a “Party” and collectively as “Parties” throughout this Agreement, and the words Party and Parties shall be construed accordingly.

WHEREAS

- (i) “The Bank” is carrying on business in banking in India and overseas and desirous to avail services to establish Centralized Monitoring Station (CMS) Command Centre & Incident Management System for branches of State Bank of India.;
- (ii) Service Provider is in the business of providing _____ and has agreed to provide the services as may be required by the Bank mentioned in the Request of Proposal (RFP) No. _____ dated _____ issued by the Bank along with its clarifications/ corrigenda, referred hereinafter as a “RFP” and same shall be part of this Agreement.

⁵Name & Complete Address of the Dept.

⁶Name & Complete Address (REGISTERED OFFICE) of service Provider,

NOW THEREFORE, in consideration of the mutual covenants, undertakings and conditions set forth below, and for other valid consideration the acceptability and sufficiency of which are hereby acknowledged, the Parties hereby agree to the following terms and conditions hereinafter contained:-

1. DEFINITIONS & INTERPRETATION

Certain terms used in this Agreement are defined hereunder. Other terms used in this Agreement are defined where they are used and have the meanings there indicated. Unless otherwise specifically defined, those terms, acronyms and phrases in this Agreement that are utilized in the information technology services industry or other pertinent business context shall be interpreted in accordance with their generally understood meaning in such industry or business context, unless the context otherwise requires/mentions, the following definitions shall apply:“

1.1 Definitions

- 1.1.1 “Confidential Information” shall have the meaning set forth in Clause 14.
- 1.1.2 “Deficiencies” shall mean defects arising from non-conformity with the mutually agreed specifications and/or failure or non-conformity in the Scope of the Services.
- 1.1.3 “Documentation” will describe in detail and in a completely self-contained manner how the User may access and use the (name of the Software/ Hardware/ Maintenance Services) such that any reader of the Documentation can access, use and maintain all of the functionalities of the (Service)⁷, without the need for any further instructions. ‘Documentation’ includes, user manuals, installation manuals, operation manuals, design documents, process documents, data flow documents, data register, technical manuals, functional specification, software requirement specification, on-line tutorials/CBTs, system configuration documents, Data Dictionary, system/database administrative documents, debugging/diagnostics documents, test procedures, Review Records/ Test Bug Reports/ Root Cause Analysis Report, list of all Product components, list of all dependent/external modules and list of all documents relating to traceability of the Product as and when applicable etc.
- 1.1.4 “Intellectual Property Rights” shall mean, on a worldwide basis, any and all: (a) rights associated with works of authorship, including copyrights & moral rights; (b) Trade Marks; (c) trade secret rights; (d) patents, designs, algorithms and other

industrial property rights; (e) other intellectual and industrial property rights of every kind and nature, however designated, whether arising by operation of law, contract, license or otherwise; and (f) registrations, initial applications, renewals, extensions, continuations, divisions or reissues thereof now or hereafter in force (including any rights in any of the foregoing).

- 1.1.5 “Agreement” means this Service Level Agreement, including all schedules, appendices, annexures and documents referenced herein, as amended from time to time.
- 1.1.6 “The Bank” ‘means the State Bank of India (herein after referred to as ‘SBI/the Bank’), having its Corporate Centre at Mumbai, various other offices (LHOs/Head Offices/Zonal Offices/Global IT Centre, etc.) of State Bank of India, branches/other offices, available at various locations and managed by the Bank.
- 1.1.7 “Service Provider” / “Vendor” means the entity engaged by the Bank to provide the Services under this Agreement
- 1.1.8 “Party” means either the Bank or the Service Provider, and “Parties” mean both of them collectively.
- 1.1.9 “RFP” means the Request for Proposal issued by the Bank for the CMS Project, including all clarifications, corrigenda and addenda thereto, which forms an integral part of this Agreement.
- 1.1.10 “CMS Project” means the establishment, implementation, operation and maintenance of the Centralized Monitoring Station (CMS), Command Centre and Incident Management System for branches of the Bank, on Capex and/or Opex basis, as described in this Agreement.
- 1.1.11 “Services” mean all services, activities, obligations, deliverables and responsibilities to be performed or provided by the Service Provider under this Agreement, including implementation, operation, maintenance, support, reporting and transition activities.
- 1.1.12 “Nodal Officer” means the officer or officers designated by the Bank to act as the primary point of contact for coordination, supervision and communication with the Service Provider for the purposes of this Agreement.
- 1.1.13 “Payment Schedule” means the schedule of fees, milestones and billing terms as specified in the relevant Appendix to this Agreement.

- 1.1.14 “Appendix” / “Appendices” means any appendix, annexure or schedule attached to and forming an integral part of this Agreement.
- 1.1.15 “Gross Negligence” means any act or omission by a Party involving reckless disregard or gross indifference to its contractual obligations under this Agreement, resulting in damage, loss or harm, but excluding acts done in good faith.
- 1.1.16 “Wilful Misconduct” means any act or omission carried out with deliberate intent or conscious disregard of the provisions of this Agreement, knowing that such act or omission is likely to cause harm, but shall not include errors of judgment made in good faith.
- 1.1.17 “Personal Data” means personal data as defined under applicable data protection laws, including the Digital Personal Data Protection Act, 2023, processed in connection with the performance of this Agreement.
- 1.1.18 “Data Fiduciary” means the Bank, in its capacity as the entity determining the purpose and means of processing Personal Data under this Agreement.
- 1.1.19 “Data Processor” means the Service Provider, in its capacity as the entity processing Personal Data on behalf of the Bank under this Agreement.
- 1.1.20 “Data Principal” means any individual to whom the Personal Data relates.
- 1.1.21 “Sub-processor” means any third party engaged by the Service Provider to process Personal Data on behalf of the Bank, where permitted under this Agreement.
- 1.1.22 “Data Privacy Laws” means the Digital Personal Data Protection Act, 2023, the Information Technology Act, 2000, and all applicable rules, regulations and amendments thereto.
- 1.1.23 “Personal Data Breach” means any actual or suspected unauthorized access, disclosure, loss, alteration or compromise of Personal Data, as defined under applicable data protection laws.

All capitalized technical and service-level terms used but not defined herein shall have the meanings ascribed to them in the relevant Appendices or as commonly understood in the context of service level agreements.

1.2 Interpretations:

- 1.2.1 Reference to a person includes any individual, firm, body corporate, association (whether incorporated or not) and authority or agency (whether government, semi government or local).
- 1.2.2 The singular includes the plural and vice versa.
- 1.2.3 Reference to any gender includes each other gender.
- 1.2.4 The provisions of the contents table, headings, clause numbers, italics, bold print and underlining is for ease of reference only and shall not affect the interpretation of this Agreement.
- 1.2.5 The Schedules, Annexures and Appendices to this Agreement shall form part of this Agreement.
- 1.2.6 A reference to any documents or agreements (and, where applicable, any of their respective provisions) means those documents or agreements as amended, supplemented or replaced from time to time provided they are amended, supplemented or replaced in the manner envisaged in the relevant documents or agreements.
- 1.2.7 A reference to any statute, regulation, rule or other legislative provision includes any amendment to the statutory modification or re-enactment or, legislative provisions substituted for, and any statutory instrument issued under that statute, regulation, rule or other legislative provision.
- 1.2.8 Any agreement, notice, consent, approval, disclosure or communication under or pursuant to this Agreement is to be in writing.
- 1.2.9 The terms not defined in this agreement shall be given the same meaning as given to them in the RFP. If no such meaning is given technical words shall be understood in technical sense in accordance with the industrial practices.

1.3 Commencement, Term & Change in Terms

- 1.3.1 This Agreement shall commence from its date of execution mentioned above/ be deemed to have commenced from _____ (Effective Date).
- 1.3.2 This Agreement shall be in force for a period of _____ year(s) from Effective Date, unless terminated by the Bank by notice in writing in accordance with the termination clauses of this Agreement.
- 1.3.3 The Bank shall have the right at its discretion to renew this Agreement in writing, for a further term of _____ years on the mutually agreed terms & conditions.

2. SCOPE OF WORK

Scope of work will be as per Appendix E of the RFP.

3. FEES /COMPENSATION

3.1 Service Provider shall be paid fees and charges in the manner detailed in hereunder, the same shall be subject to deduction of income tax thereon wherever required under the provisions of the Income Tax Act by the Bank. The remittance of amounts deducted and issuance of certificate for such deductions shall be made by the Bank as per the laws and regulations for the time being in force. Nothing in the Agreement shall relieve Service Provider from his responsibility to pay any tax that may be levied in India on income and profits made by Service Provider in respect of this Agreement.

7.1.1 The Bank agrees to pay the fees as set out in **APPENDIX-C** (“**Payment Schedule**”) to Service Provider for the Services being rendered by it, in the manner set out in this Agreement.

7.1.2 The Parties agree that the Fees payable in respect of a stage shall be paid as per the detailed billing schedule set out in **APPENDIX-C**.

7.1.3 The Parties agree that all Fees will be billed by and payable in Indian rupees at Mumbai. The Bank will pay properly submitted valid invoices within reasonable period but not exceeding 30 (thirty) days after its receipt thereof.

7.1.4 The Bank may withhold payment of any Services that it disputes in good faith, and may set-off penalty amount or any other amount which Service Provider owes to the Bank against amount payable to Service Provider under this Agreement. However, before levying penalty or recovery of any damages, the Bank shall provide a written notice to Service Provider indicating the reasons for such penalty or recovery of damages. Service Provider shall have the liberty to present its case in writing together with documentary evidences, if any, within 21 (twenty one) days. Penalty or damages, if any, recoverable from Service Provider shall be recovered by the Bank through a credit note or revised invoices. In case Service Provider fails to issue credit note/ revised invoice, the Bank shall have right to withhold the payment or set-off penal amount from current invoices.

7.2 All duties and taxes (excluding GST or any other tax imposed by the Government in lieu of same), if any, which may be levied, shall be borne by Service Provider and Bank shall not be liable for the same. GST or any other tax imposed by the Government in lieu of same shall

be borne by the Bank on actual upon production of original receipt wherever required.

- 7.3 All expenses, stamp duty and other charges/ expenses in connection with execution of this Agreement shall be borne by Service Provider.

4. LIABILITIES/OBLIGATION

4.1 The Bank's Duties /Responsibility

- (i) Processing and authorising invoices
- (ii) The Bank shall designate a competent employee or employees ("Nodal Officer"), preferably within senior management, to be responsible for the completion of the Services contemplated under this Agreement and the supervision of the implementation of establishment of Centralized Monitoring Station, Command Centre & Incident Management System for Branches of State Bank of India (Referred as "CMS Project").
- (iii) The Nodal Officer shall assist Service Provider in coordinating meetings/workshops with the relevant Heads of Departments and escalate issues/delays to the appropriate senior management and such Project Representative shall be Service Provider's primary point of contact for the purposes of this Agreement. All communications to Service Provider shall be made solely by the Nodal Officer, on behalf of the Bank.
- (iv) The Bank shall actively participate in providing required inputs and assessments required by the Consultancy Team in providing the Services in terms of this Agreement and the implementation of CMS Project and validate and provide its acceptance for all Reports on a timely basis, if such Reports are in a form and manner that is acceptable to the Bank.
- (v) The Bank shall make administrative arrangements for working space (including communication, access cards and other infrastructure) at the State Bank Bhavan for the Service Provider on a request basis.
- (vi) The Bank shall arrange for the Heads of the Departments to attend meetings for the purposes explaining the processes and controls of the relevant Department to the Service Provider.
- (vii) The Bank shall provide Service Provider access to relevant documents/manuals/records as may be reasonably requested and required by the Consultancy Team in relation to the provision of the Services contemplated in terms of this Agreement.

4.2 Service Provider Duties

- i. Service Provider is responsible for and obliged to conduct all contracted activities

in accordance with the Contract using state-of-the-art methods and economic principles and exercising all means available to achieve the performance specified in the Contract.

ii. Service Provider is obliged to work closely with the Bank's staff, act within its own authority and abide by directives issued by the Bank from time to time and complete implementation activities.

iii. Service Provider will abide by the job safety measures prevalent in India and will free the Bank from all demands or responsibilities arising from accidents or loss of life, the cause of which is Service Provider's negligence. Service Provider will pay all indemnities arising from such incidents and will not hold the Bank responsible or obligated.

iv. Service Provider is responsible for activities of its personnel or sub-contracted personnel (where permitted) and will hold itself responsible for any misdemeanors.

v. Service Provider shall treat as confidential all data and information about the Bank, obtained in the process of executing its responsibilities, in strict confidence and will not reveal such information to any other party without prior written approval of the Bank as explained under 'Non-Disclosure Agreement' in APPENDIX-B of this RFP.

vi. Service Provider shall report the incidents, including cyber incidents and those resulting in disruption of service and data loss/ leakage immediately but not later than one hour of detection.

vii. The Service Provider agrees to comply with the obligations arising out of the Digital Personal Data Protection Act, 2023, as and when made effective. Any processing of Personal Data by the Service Providers in the performance of this Agreement shall be in compliance with the above Act thereafter. The Service Provider shall also procure that any subcontractor (if allowed) engaged by it shall act in compliance with the above Act, to the extent applicable. The Service Provider understands and agrees that this agreement may have to be modified in a time-bound manner to ensure that the provisions contained herein are in compliance with the above Act.

viii. Service Provider agrees to comply with the guidelines contained in the Bank's IT Outsourcing Policy / IT Procurement Policy or any other relevant policy (ies) of the Bank,

including any amendment thereto, along with compliance to all the Laws of Land and Statutory/Regulatory rules and regulations in force or as and when enacted during the validity period of the contract.

5. REPRESENTATIONS & WARRANTIES

5.1 Each of the Parties represents and warrants in relation to itself to the other that:

- (i) It has all requisite corporate power and authority to execute, deliver and perform its obligations under this Agreement and has been fully authorized through applicable corporate process to do so.
- (ii) The person(s) signing this Agreement on behalf of the Parties have the necessary authority and approval for execution of this document and to bind his/their respective organization for due performance as set out in this Agreement. It has all necessary statutory and regulatory permissions, approvals and permits for the running and operation of its business.
- (iii) It has full right, title and interest in and to all software, copyrights, trade names, trademarks, service marks, logos symbols and other proprietary marks (collectively 'IPR') (including appropriate limited right of use of those owned by any of its vendors, affiliates or subcontractors) which it provides to the other Party, for use related to the Services to be provided under this Agreement.
- (iv) It will provide such cooperation as the other Party reasonably requests in order to give full effect to the provisions of this Agreement.
- (v) The execution and performance of this Agreement by either of the Parties does not and shall not violate any provision of any of the existing Agreement with any of the party and any other third party.

5.2 Additional Representation by Service Provider

- (i) Service Provider shall perform the Services and carry out its obligations under the Agreement with due diligence, efficiency and economy, in accordance with generally accepted techniques and practices used in the industry and with professional standards recognized by international professional bodies and shall observe sound management practices. It shall employ appropriate advanced technology and safe and effective equipment, machinery, material and methods.
- (ii) Service Provider has the requisite technical and other competence, sufficient, suitable, qualified and experienced manpower/personnel and expertise in providing the Services to the Bank.

- (iii) Service Provider shall duly intimate to the Bank immediately, the changes, if any in the constitution of Service Provider.
- (iv) Service Provider warrants that to the best of its knowledge, as on the Effective Date of this Agreement, the services and products provided by Service Provider to the Bank do not violate or infringe any patent, copyright, trademarks, trade secrets or other intellectual property rights of any third party.
- (v) Service provider shall ensure that all persons, employees, workers and other individuals engaged by or sub-contracted (if allowed) by Service Provider in rendering the Services under this Agreement have undergone proper background check, police verification and other necessary due diligence checks to examine their antecedence and ensure their suitability for such engagement. No person shall be engaged by Service provider unless such person is found to be suitable in such verification and Service Provider shall retain the records of such verification and shall produce the same to the Bank as and when requested.
- (vi) Service Provider warrants that at the time of delivery the software deployed/ upgraded as a part of this Agreement is free from malware, free from any obvious bugs, and free from any covert channels in the code (of the versions of the applications/software being delivered as well as any subsequent versions/modifications done). Software deployed/ upgraded as a part of this Agreement shall remain free from OWASP Top 10 vulnerabilities (latest) during the term of this Agreement.
- (vii) Service Provider represents and warrants that its personnel shall be present at the Bank premises or any other place as the bank may direct, only for the Services and follow all the instructions provided by the Bank; act diligently, professionally and shall maintain the decorum and environment of the Bank; comply with all occupational, health or safety policies of the Bank.
- (viii) Service Provider warrants that it shall be solely liable and responsible for compliance of applicable Labour Laws in respect of its employee, agents, representatives and sub-contractors (if allowed) and in particular laws relating to terminal benefits such as pension, gratuity, provident fund, bonus or other benefits to which they may be entitled and the laws relating to contract labour, minimum wages, etc., and the Bank shall have no liability in this regard.
- (ix) During the Contract period, if any software or any component thereof is supplied by Service Provider is inoperable or suffers degraded performance, Service provider shall, at the Bank's request, promptly replace the software or specified component with new software of the same type and quality. Such replacement shall be accomplished without

any adverse impact on the Bank's operations within agreed time frame and without any additional cost to the Bank.

5.2 Warranty and Annual Maintenance Contract by Service Provider

- (i) The selected Bidder shall support the entire system during the contract term from the date of acceptance of the system by State Bank of India.
- (ii) Service Provider shall support the Product and its associated items/components including OS/firmware during the contract term.
- (iii) During the operation and maintenance period, the Bidder will have to undertake comprehensive support of the System supplied by the Bidder and all new versions, releases, and updates for all standard software to be supplied to the Bank at no additional cost. During the support period, the Bidder shall maintain the System to comply with parameters defined for acceptance criteria and the Bidder shall be responsible for all costs relating to labor, spares, maintenance (preventive and corrective), compliance of security requirements and transport charges from and to the Site(s) in connection with the repair/ replacement of the System, which, under normal and proper use and maintenance thereof, proves defective in design, material or workmanship or fails to conform to the specifications, as specified.
- (iv) On site comprehensive warranty for the supplied items would include free replacement of spares, parts, kits, resolution of problem, if any, in Product.
- (v) During the support period, Service Provider shall ensure that services of professionally qualified personnel are available for providing comprehensive on-site maintenance of the System and its components as per the Bank's requirements. Comprehensive maintenance shall include, among other things, day-to-day maintenance of the System as per the Bank's policy, reloading of firmware/software, compliance to security requirements, etc. when required or in the event of system crash/malfunctioning, arranging and configuring facility as per the requirements of the Bank, fine tuning, system monitoring, log maintenance, etc. In case of failure of Product (hardware, system software or any of its components) or System, the Bidder shall ensure that Product/ System is made operational to the full satisfaction of the Bank within the given timelines.

Service Provider shall provide preventive maintenance schedules as per periodicity defined in RFP.

- (vi) Support during operation and maintenance phase for the system/ software/ off-the shelf software will be provided to the Bank as per the general conditions of sale of such software.
- (vii) Support during operation and maintenance phase would be on-site and comprehensive in nature and must have back-to-back support from the OEM/Service Provider. Service Provider will warrant products against defects arising out of faulty design etc. during the specified support period. Service Provider will provide support for operating systems and other pre-installed software components/system software of the hardware on which this software and operating system will be installed. Service Provider shall repair or replace worn out or defective parts including all plastic parts of the Equipment at his own cost including the cost of transport.
- (viii) In the event of system breakdown or failures at any stage, protection available, which would include the following, shall be specified.
- (ix) Diagnostics for identification of systems failures
- (x) Protection of data/ Configuration
- (xi) Recovery/ restart facility
- (xii) Backup of system software/ Configuration
- (xiii) Prompt support shall be made available as desired in this RFP during the support period at the locations as and when required by the Bank.
- (xiv) The Bidder shall be agreeable for on call/on-site support at the time of switching over from production environment to DR and vice versa. No extra charge shall be paid by the Bank for such needs, if any, during the support period.
- (xv) Bidder support staff should be well trained to effectively handle queries raised by the consultants/ employees of the Bank.
- (xvi) Updated escalation matrix shall be made available to the Bank once in each quarter and each time the matrix gets changed.

6. GENERAL INDEMNITY

- 6.1 Service Provider agrees and hereby keeps the Bank indemnified against all claims, actions, loss, damages,, costs, expenses, charges, including legal expenses (Attorney, Advocates fees included) which the Bank may suffer or incur on account of (i) Services Provider's breach of its warranties, covenants, responsibilities or obligations; or (ii) breach of confidentiality obligations mentioned in this Agreement; or (iii) any wilful misconduct and gross negligent acts on the part of employees, agents, representatives or sub-contractors (if allowed) of Service Provider. Service Provider agrees to make good the loss suffered by the Bank.
- 6.2 Service Provider hereby undertakes the responsibility to take all possible measures, at no additional cost, to avoid or rectify any issues which thereby results in non-performance of software/ hardware/ deliverables within reasonable time. The Bank shall report as far as possible all material defects to Service Provider without undue delay. Service Provider also undertakes to co-operate with other service providers thereby ensuring expected performance covered under scope of work.

7. CONTINGENCY PLANS

Service Provider shall arrange and ensure proper data recovery mechanism, attrition plan and other contingency plans to meet any unexpected obstruction to Service Provider or any employees or sub-contractors (if allowed) of Service Provider in rendering the Services or any part of the same under this Agreement to the Bank. Service Provider at Banks discretion shall co-operate with the Bank in case on any contingency.

8. TRANSITION REQUIREMENT

In the event of failure of Service Provider to render the Services or in the event of termination of Agreement or expiry of term or otherwise, without prejudice to any other right, the Bank at its sole discretion may make alternate arrangement for getting the Services contracted with another vendor. In such case, the Bank shall give prior notice to the existing Service Provider. The existing Service Provider shall continue to provide services as per the terms of the Agreement until a 'New Service Provider' completely takes over the work. During the transition phase, the existing Service Provider shall render all reasonable assistances to the new Service Provider within such period prescribed by the Bank, at no extra cost to the Bank, for ensuring smooth switch over and continuity of Services, provided

where transition services are required by the Bank or New Service Provider beyond the term of this Agreement, reasons for which are not attributable to Service Provider, payment shall be made to Service Provider for such additional period on the same rates and payment terms as specified in this Agreement. If existing vendor is found to be in breach of this obligation, they shall be liable for paying a penalty of Rs. _____ on demand to the Bank, which may be settled from the payment of invoices or bank guarantee for the contracted period. Transition & Knowledge Transfer plan is mentioned in APPENDIX F.

9. LIQUIDATED DAMAGES

If the Service Provider fails to deliver product and/or perform any or all the Services within the stipulated time, schedule as specified in this RFP/Agreement, the Bank may, without prejudice to its other remedies under the RFP/Agreement, and unless otherwise “Extension of Time” is agreed upon without the application of liquidated damages, deduct from the Project Cost, as liquidated damages a sum equivalent to two percent (2%) of the value of the delayed milestone for each week or part thereof of delay, subject to a maximum of five percent (5%) of the total Project Cost. Once the maximum deduction is reached, the Bank may consider termination of the Agreement.

10. RELATIONSHIP BETWEEN THE PARTIES

- 10.1 It is specifically agreed that Service Provider shall act as independent service provider and shall not be deemed to be the Agent of the Bank except in respect of the transactions/services which give rise to Principal - Agent relationship by express agreement between the Parties.
- 10.2 Neither Service Provider nor its employees, agents, representatives, Sub-Contractors shall hold out or represent as agents of the Bank.
- 10.3 None of the employees, representatives or agents of Service Provider shall be entitled to claim any absorption or any other claim or benefit against the Bank.
- 10.4 This Agreement shall not be construed as joint venture. Each Party shall be responsible for all its obligations towards its respective employees. No employee of any of the two Parties shall claim to be employee of other Party.
- 10.5 All the obligations towards the employee(s) of a Party on account of personal accidents while working in the premises of the other Party shall remain with the respective employer and not on the Party in whose premises the accident occurred unless such accidents occurred due to gross negligent act of the Party in whose premises the accident occurred.

- 10.6 For redressal of complaints of sexual harassment at workplace, Parties agree to comply with the policy framed by the Bank (including any amendment thereto) in pursuant to the Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013 including any amendment thereto.

11. SUBCONTRACTING

- 11.1 The service provider/bidder would Only be permitted to Sub-contract/outsource work for the following with prior approval from the Bank:
- 11.1.1 Passive Networking, Cabling and Civil Work during implementation
 - 11.1.2 Services of professional architect for design of command centers
 - 11.1.3 Services delivered by the respective Product Vendors / OEMs
 - 11.1.4 Viewing Manpower for CMS Command Centre during Operation and Maintenance phase
 - 11.1.5 Installation and Maintenance (only) of active devices, but the overall responsibility of configuration and operation is of selected system integrator only.
- 11.2 The Service Provider shall carry out its standard due diligence process on sub-contracting/ sub-contractor.
- 11.3 Service Provider shall comply with all the instructions, requirements and any other conditions suggested by the Bank during contract term in order for the Bank to comply with its site access and regulatory audit requirements, and upon Bank's request Service Provider will provide a written confirmation of compliance with the requirements of this provision.
- 11.4 With the Bank's prior written approval, Service Provider may change the sub-contractor, provided it does not impact the quality of Services being delivered. However, Service Provider shall inform the Bank on its intention to change the sub-contractor and reason thereof.
- 11.5 Service Provider shall be responsible for all the Services provided to the Bank regardless of which entity is conducting the operations. Service Provider is also responsible for ensuring that the sub-contractor comply with all security/confidentiality requirements and other terms and conditions as applicable to Service Provider mentioned in this RFP. Bank reserves the right to conduct independent audit in this regard.
- 11.6 Service Provider shall ensure that suitable documents, including confidentiality agreement, are obtained from the sub-contractor and the Service Provider shall ensure that the secrecy and faith of the Bank's data / processes is maintained.

- 11.7 Notwithstanding approval of the Bank for sub-contracting, the Service Provider shall remain liable to the Bank for all acts/omissions of sub-contractors.
- 11.8 Service Provider shall ensure that it shall have all back-to-back commitments from its vendors in such agreements.
- 11.9 Service Provider shall provide the complete details of Services sub-contracted by it including the details of sub-contractor(s) and/or its agent to the Bank as and when requested.

12. INTELLECTUAL PROPERTY RIGHTS

- 12.1 For any technology / software / product used/supplied by Service Provider for performing Services for the Bank as part of this Agreement, Service Provider shall have right to use as well as right to license such technology/ software / product. The Bank shall not be liable for any license or IPR violation on the part of Service Provider.
- 12.2 Without the Bank's prior written approval, Service provider will not, in performing the Services, use or incorporate link to or call or depend in any way upon, any software or other intellectual property that is subject to an Open Source or Copy left license or any other agreement that may give rise to any third-party claims or to limit the Bank's rights under this Agreement.
- 12.3 Subject to below mentioned sub-clause 12.4 and 12.5 of this Agreement, Service Provider shall, at its own expenses without any limitation, indemnify and keep fully and effectively indemnified the Bank against all costs, claims, damages, demands, expenses and liabilities whatsoever nature arising out of or in connection with all claims of infringement of Intellectual Property Right, including patent, trademark, copyright, trade secret or industrial design rights of any third party arising from the Services or use of the technology / software / products or any part thereof in India or abroad.
- 12.4 The Bank will give (a) notice to Service Provider of any such claim without delay/provide reasonable assistance to Service Provider in disposing of the claim; (b) sole authority to defend and settle such claim and; (c) will at no time admit to any liability for or express any intent to settle the claim provided that (i) Service Provider shall not partially settle any such claim without the written consent of the Bank, unless such settlement releases the Bank fully from such claim, (ii) Service Provider shall promptly provide the Bank with copies of all pleadings or similar documents relating to any such claim, (iii) Service Provider shall consult with the Bank with respect to the defense and settlement of any such claim, and (iv) in any litigation to which the Bank is also a party, the Bank shall be entitled to be separately represented at its own expenses by counsel of its own selection.

12.5 Service Provider shall have no obligations with respect to any infringement claims to the extent that the infringement claim arises or results from: (i) Service Provider's compliance with the Bank's specific technical designs or instructions (except where Service Provider knew or should have known that such compliance was likely to result in an Infringement Claim and Service Provider did not inform the Bank of the same); or (ii) any unauthorized modification or alteration of the deliverable (if any) by the Bank.

13. INSPECTION AND AUDIT

- 13.1 The Selected Bidder (Service Provider) shall be subject to annual audit by internal/ external Auditors/Consultants appointed by the Bank/ inspecting official from the Reserve Bank of India or any regulatory authority, covering the risk parameters finalized by the Bank/ such auditors in the areas of products (IT hardware/ Software) and services etc. provided to the Bank and Service Provider is required to submit such certification by such Auditors/Consultants to the Bank.
- 13.2 Service Provider and or his / their outsourced agents / sub – contractors (if allowed by the Bank) shall facilitate the same The Bank can make its expert assessment on the efficiency and effectiveness of the security, control, risk management, governance system and process created by the Service Provider. The Service Provider shall, whenever required by the Auditors/Consultants, furnish all relevant information, records/data to them. All costs for such audit shall be borne by the Bank.
- 13.3 Except for the audit done by Reserve Bank of India or any statutory/regulatory authority, the Bank shall provide reasonable notice not less than 7 (seven) days to Service Provider before such audit and same shall be conducted during normal business hours.
- 13.4 Where any Deficiency has been observed during audit of Service Provider on the risk parameters finalized by the Bank or in the certification submitted by the Auditors, it is agreed upon by Service Provider that it shall correct/ resolve the same at the earliest and shall provide all necessary documents related to resolution thereof and the auditor shall further certify in respect of resolution of the Deficiencies. It is also agreed that Service Provider shall provide certification of the auditor to the Bank regarding compliance of the observations made by the auditors covering the respective risk parameters against which such Deficiencies observed.

- 13.5 Service Provider further agrees that whenever required by the Bank, it will furnish all relevant information, records/data to such auditors/consultants and/or inspecting officials of the Bank/Reserve Bank of India and/or any regulatory authority(ies).
- 13.6 The Bank reserves the right to call for and/or retain any relevant information /audit reports on financial and security reviews with their findings undertaken by the Service Provider. However, Service Provider shall not be obligated to provide records/data not related to Services under the Agreement (e.g. internal cost breakup etc.).
- 13.7 Service provider shall grant unrestricted and effective access to a) data related to the outsourced activities; b) the relevant business premises of the service provider; subject to appropriate security protocols, for the purpose of effective oversight use by the Bank, their auditors, regulators and other relevant Competent Authorities, as authorised under law.

14. CONFIDENTIALITY

1.1 “Confidential Information” mean all information which is material to the business operations of either party or its affiliated companies, designated as being confidential or which, under the circumstances surrounding disclosure out to be treated as confidential, in any form including, but not limited to, proprietary information and trade secrets, whether or not protected under any patent, copy right or other intellectual property laws, in any oral, photographic or electronic form, whether contained on computer hard disks or floppy diskettes or otherwise without any limitation whatsoever. Without prejudice to the generality of the foregoing, the Confidential Information shall include all information about the party and its customers, costing and technical data, studies, consultants reports, financial information, computer models and programs, software Code, contracts, drawings, blue prints, specifications, operating techniques, processes, models, diagrams, data sheets, reports and other information with respect to any of the foregoing matters. All and every information received by the parties and marked confidential hereto shall be assumed to be confidential information unless otherwise proved. It is further agreed that the information relating to the Bank and its customers is deemed confidential whether marked confidential or not.

1.2 All information relating to the accounts of the Bank's customers shall be confidential information, whether labeled as such or otherwise.

1.3 All information relating to the infrastructure and Applications (including designs and processes) shall be deemed to be Confidential Information whether labeled as such or not. Service Provider personnel/resources responsible for the project are expected to take care that their representatives, where necessary, have executed a Non-Disclosure Agreement similar to comply with the confidential obligations under this Agreement.

1.4 Each party agrees that it will not disclose any Confidential Information received from the other to any third parties under any circumstances without the prior written consent of the other party unless such disclosure of Confidential Information is required by law, legal process or any order of any government authority. Service Provider in this connection, agrees to abide by the laws especially applicable to confidentiality of information relating to customers of Banks and the banks per-se, even when the disclosure is required under the law. In such event, the Party must notify the other Party that such disclosure has been made in accordance with law; legal process or order of a government authority.

1.5 Each party, including its personnel, shall use the Confidential Information only for the purposes of achieving objectives set out in this Agreement. Use of the Confidential Information for any other purpose shall constitute breach of trust of the same.

1.6 Each party may disclose the Confidential Information to its personnel solely for the purpose of undertaking work directly related to the Agreement. The extent of Confidential Information disclosed shall be strictly limited to what is necessary for those particular personnel to perform his/her duties in connection with the Agreement. Further each Party shall ensure that each personnel representing the respective party agree to be bound by obligations of confidentiality no less restrictive than the terms of this Agreement.

1.7 The non-disclosure obligations herein contained shall not be applicable only under the following circumstances:

- (i) Where Confidential Information comes into the public domain during or after the date of this Agreement otherwise than by disclosure by a receiving party in breach of the terms hereof.
- (ii) Where any Confidential Information was disclosed after receiving the written consent of the disclosing party.

- (iii) Where receiving party is requested or required by law or by any Court or governmental agency or authority to disclose any of the Confidential Information, then receiving party will provide the other Party with prompt notice of such request or requirement prior to such disclosure.
- (iv) Where any Confidential Information was received by the receiving party from a third party which does not have any obligations of confidentiality to the other Party.
- (v) Where Confidential Information is independently developed by receiving party without any reference to or use of disclosing party's Confidential Information.

1.8 Receiving party undertakes to promptly notify disclosing party in writing any breach of obligation of the Agreement by its employees or representatives including confidentiality obligations. Receiving party acknowledges that monetary damages may not be the only and / or a sufficient remedy for unauthorized disclosure of Confidential Information and that disclosing party shall be entitled, without waiving any other rights or remedies, to injunctive or equitable relief as may be deemed proper by a Court of competent jurisdiction.

1.9 Service Provider shall not, without the Bank's prior written consent, make use of any document or information received from the Bank except for purposes of performing the services and obligations under this Agreement.

1.10 Any document received from the Bank shall remain the property of the Bank and shall be returned (in all copies) to the Bank on completion of Service Provider's performance under the Agreement.

1.11 Upon expiration or termination of the Agreement, all the Bank's proprietary documents, customized programs partially or wholly completed and associated documentation, or the Bank's materials which are directly related to any project under the Agreement shall be delivered to the Bank or at the Bank's written instruction destroyed, and no copies shall be retained by Service provider without the Bank's written consent.

1.12 The foregoing obligations (collectively referred to as "Confidentiality Obligations") set out in this Agreement shall survive the term of this Agreement and for a period of five (5) years thereafter provided Confidentiality Obligations with respect to individually identifiable information, customer's data of Parties or software in human-readable form (e.g., source code) shall survive in perpetuity.

15. TERMINATION

15.1 TERMINATION FOR DEFAULT:

- i. The Bank may, without prejudice to any other remedy for breach of Agreement, by giving written notice of not less than 30 (thirty) days, terminate the Agreement in whole or in part:
 - (i) If the Service Provider fails to deliver any or all the obligations within the time period specified in the RFP/Agreement, or any extension thereof granted by the Bank;
 - (ii) If the Service Provider fails to perform any other obligation(s) under the RFP/Agreement;
 - (iii) Violations of any terms and conditions stipulated in the RFP;
 - (iv) On happening of any termination event mentioned in the RFP/Agreement.

Prior to providing a written notice of termination to Service Provider under abovementioned sub-clause (i) (a) to (c), the Bank shall provide Service Provider with a written notice of 30 (thirty) days to cure such breach of the Agreement. If the breach continues or remains unrectified after expiry of cure period, the Bank shall have right to initiate action in accordance with above clause.

- ii. In the event the Bank terminates the Contract in whole or in part for the breaches attributable to Service Provider, the Bank may procure, upon such terms and in such manner as it deems appropriate, software and Services similar to those undelivered, and subject to limitation of liability clause of this RFP, Service Provider shall be liable to the Bank for any increase in cost for such similar System and/or Services. However, Service Provider shall continue performance of the Contract to the extent not terminated.
- iii. If the Contract is terminated under any termination clause, Service Provider shall handover all documents/ executable/ Bank's data or any other relevant information to the Bank in timely manner and in proper format as per scope of this RFP and shall also support the orderly transition to another vendor or to the Bank.
- iv. During the transition, Service Provider shall also support the Bank on technical queries/support on process implementation or in case of software provision for future upgrades.

- v. The Bank's right to terminate the Contract will be in addition to the penalties / liquidated damages and other actions as specified in this RFP.
- vi. In the event of failure of the Service Provider to render the Services or in the event of termination of Agreement or expiry of term or otherwise, without prejudice to any other right, the Bank at its sole discretion may make alternate arrangement for getting the Services contracted with another vendor. In such case, the Bank shall give prior notice to the existing Service Provider. The existing Service Provider shall continue to provide services as per the terms of the Agreement until a 'New Service Provider' completely takes over the work. During the transition phase, the existing Service Provider shall render all reasonable assistance to the new Service Provider within such period prescribed by the Bank, at no extra cost to the Bank, for ensuring smooth switch over and continuity of services, provided where transition services are required by the Bank or New Service Provider beyond the term of this Agreement, reasons for which are not attributable to Service Provider, payment shall be made to Service Provider for such additional period on the same rates and payment terms as specified in this Agreement. If existing Service Provider is in breach of this obligation, they shall be liable for paying a penalty of 10% of the total Project Cost on demand to the Bank, which may be settled from the payment of invoices or Bank Guarantee for the contracted period or by invocation of Bank Guarantee.

15.2 TERMINATION FOR INSOLVENCY:

The Bank may, at any time, terminate the Contract by giving written notice to Service Provider, if Service Provider becomes bankrupt or insolvent or any application for bankruptcy, insolvency or winding up has been filed against it by any person. In this event, termination will be without compensation to Service Provider, provided that such termination will not prejudice or affect any right of action or remedy, which has accrued or will accrue thereafter to the Bank.

15.3 TERMINATION FOR CONVENIENCE:

- i. The Bank, by written notice of not less than 90 (ninety) days, may terminate the Contract, in whole or in part, for its convenience, provided same shall not be invoked by the Bank before completion of half of the total Contract period (including the notice period).

- ii. In the event of termination of the Agreement for the Bank's convenience, Service Provider shall be entitled to receive payment for the Services rendered (delivered) up to the effective date of termination. The Service Provider shall not be entitled to any compensation for loss of profit, loss of opportunity, or any other consequential or indirect losses arising from such termination.

16. DISPUTE REDRESSAL MECHANISM & GOVERNING LAW

16.1 DISPUTE REDRESSAL MECHANISM

- i. All disputes or differences whatsoever arising between the parties out of or in connection with the Contract (including dispute concerning interpretation) or in discharge of any obligation arising out of the Contract (whether during the progress of work or after completion of such work and whether before or after the termination of the Contract, abandonment or breach of the Contract), shall be settled amicably. If, however, the parties are not able to solve them amicably within 30 (Thirty) days after the dispute occurs, as evidenced through the first written communication from any Party notifying the other regarding the disputes, the same shall be referred to and be subject to the jurisdiction of competent Civil Courts of Mumbai only. The Civil Courts in Mumbai, Maharashtra shall have exclusive jurisdiction in this regard.
- ii. Service Provider shall continue work under the Contract during the dispute resolution proceedings unless otherwise directed by the Bank or unless the matter is such that the work cannot possibly be continued until the decision of the competent court is obtained.

16.2 GOVERNING LAW

The Contract shall be interpreted in accordance with the laws of the Union of India and shall be subjected to the exclusive jurisdiction of courts at Mumbai.

17. POWERS TO VARY OR OMIT WORK

- 17.1 No alterations, amendments, omissions, additions, suspensions or variations of the work (hereinafter referred to as variation) under the Agreement shall be made by Service provider except as directed in writing by Bank. The Bank shall have full powers, subject to the provision herein after contained, from time to time during the execution of the Agreement, by notice in writing to instruct Service provider to make any variation without

prejudice to the Agreement. Service provider shall carry out such variations and be bound by the same conditions, though the said variations occurred in the Agreement documents. If any suggested variations would, in the opinion of Service provider, if carried out, prevent them from fulfilling any of their obligations under the Agreement, they shall notify the Bank, thereof, in writing with reasons for holding such opinion and Bank shall instruct Service provider to make such other modified variation without prejudice to the Agreement. Service provider shall carry out such variations and be bound by the same conditions, though the said variations occurred in the Agreement documents. If Bank confirms their instructions Service provider's obligations will be modified to such an extent as may be mutually agreed. If such variation involves extra cost, any agreed difference in cost occasioned by such variation shall be mutually agreed between the parties. In any case in which Service provider has received instructions from the Bank as to the requirement of carrying out the altered or additional substituted work, which either then or later on, will in the opinion of Service provider, involve a claim for additional payments, such additional payments shall be mutually agreed in line with the terms and conditions of the order.

- 17.2 If any change in the work is likely to result in reduction in cost, the parties shall agree in writing so as to the extent of reduction in payment to be made to Service Provider, before Service provider proceeding with the change.

18. WAIVER OF RIGHTS

Each Party agrees that any delay or omission on the part of the other Party to exercise any right, power or remedy under this RFP will not automatically operate as a waiver of such right, power or remedy or any other right, and no waiver will be effective unless it is in writing and signed by the waiving Party. Further the waiver or the single or partial exercise of any right, power or remedy by either Party hereunder on one occasion will not be construed as a bar to a waiver of any successive or other right, power or remedy on any other occasion.

19. LIMITATION OF LIABILITY

- i. The maximum aggregate liability of Service Provider, subject to below mentioned sub-clause (iii), in respect of any claims, losses, costs or damages arising out of or in connection with this RFP/Agreement shall not exceed the total Project Cost.

- ii. Under no circumstances shall either Party be liable for any indirect, consequential or incidental losses, damages or claims including loss of profit, loss of business or revenue.
- iii. The limitations set forth herein shall not apply with respect to:
 - a) claims that are the subject of indemnification pursuant to infringement of third-party Intellectual Property Right;
 - b) damage(s) occasioned by the **Gross Negligence or Wilful Misconduct** of Service Provider,
 - c) damage(s) occasioned by Service Provider for breach of Confidentiality Obligations,
 - d) Regulatory or statutory fines imposed by a Government or Regulatory agency for non-compliance of statutory or regulatory guidelines applicable to the Bank, provided such guidelines were brought to the notice of Service Provider.

For the purpose of abovementioned sub-clause (iii)(b) **“Gross Negligence” means** any act or failure to act by a party which was in reckless disregard of or gross indifference to the obligation of the party under this Agreement and which causes injury, damage to life, personal safety, real property, harmful consequences to the other party, which such party knew, or would have known if it was acting as a reasonable person, would result from such act or failure to act for which such Party is legally liable. Notwithstanding the foregoing, Gross Negligence shall not include any action taken in good faith, and **“Wilful Misconduct” means** any act or failure to act with an intentional disregard of any provision of this Agreement, which a party knew or should have known if it was acting as a reasonable person, which would result in injury, damage to life, personal safety, real property, harmful consequences to the other party, but shall not include any error of judgment or mistake made in good faith.

20. FORCE MAJEURE

- i. Notwithstanding the provisions of terms and conditions contained in this RFP, neither party shall be liable for any delay in performing its obligations herein if and to the extent that such delay is the result of an event of Force Majeure.
- ii. For the purposes of this clause, 'Force Majeure' means and includes wars, insurrections, revolution, civil disturbance, riots, terrorist acts, public strikes, hartal, bundh, fires, floods, epidemic, quarantine restrictions, freight embargoes, declared general strikes in relevant industries, Vis Major, acts of Government in their sovereign capacity, impeding reasonable performance of Service Provider and / or Sub-Contractor but does not include any

foreseeable events, commercial considerations or those involving fault or negligence on the part of the party claiming Force Majeure.

- iii. If a Force Majeure situation arises, Service Provider shall promptly notify the Bank in writing of such condition and the cause thereof. Unless otherwise directed by the Bank in writing, Service Provider shall continue to perform its obligations under the Contract as far as is reasonably practical and shall seek all reasonable alternative means for performance not prevented by the Force Majeure event.
- iv. If the Force Majeure situation continues beyond 30 (thirty) days, either party shall have the right to terminate the Agreement by giving a notice to the other party. Neither party shall have any penal liability to the other in respect of the termination of the Agreement as a result of an event of Force Majeure. However, Service Provider shall be entitled to receive payments for all services actually rendered up to the date of the termination of the Agreement.

21. NOTICES

- 21.1 Any notice or any other communication required to be given under this Agreement shall be in writing and may be given by delivering the same by hand or sending the same by prepaid registered mail, postage prepaid, telegram or facsimile to the relevant address set forth below or such other address as each Party may notify in writing to the other Party from time to time. Any such notice given as aforesaid shall be deemed to be served or received at the time upon delivery (if delivered by hand) or upon actual receipt (if given by postage prepaid, telegram or facsimile).
- 21.2 A notice shall be effective when it is delivered or on the effective date of the notice, whichever is later.
- 21.3 The addresses for Communications to the Parties are as under.
 - (a) In the case of the Bank

 - (b) In case of Service Provider

- 21.4 In case there is any change in the address of one Party, it shall be promptly communicated in writing to the other Party.

22. GENERAL TERMS & CONDITIONS

1. **TRAINING:** Service Provider shall train designated Bank officials on the configuration, operation/ functionalities, maintenance, support & administration for software, application architecture and components, installation, troubleshooting processes of the proposed Services as mentioned in this Agreement.
2. **PUBLICITY:** Service Provider may make a reference of the services rendered to the Bank covered under this Agreement on Service provider's Web Site or in their sales presentations, promotional materials, business plans or news releases etc., only after prior written approval from the Bank.
3. **SUCCESSORS AND ASSIGNS:** This Agreement shall bind and inure to the benefit of the parties, and their respective successors and permitted assigns.
4. **NON-HIRE AND NON-SOLICITATION:** During the term of this Agreement and for a period of one year thereafter, neither party shall (either directly or indirectly through a third party) employ, solicit to employ, cause to be solicited for the purpose of employment or offer employment to any employee(s) of the other party, or aid any third person to do so, without the specific written consent of the other party. However nothing in this clause shall affect the Bank's regular recruitments as per its recruitment policy and not targeted to the employees of Service provider.
5. **SEVERABILITY:** The invalidity or unenforceability of any provision of this Agreement shall not in any way effect, impair or render unenforceable this Agreement or any other provision contained herein, which shall remain in full force and effect.
6. **MODIFICATION:** This Agreement may not be modified or amended except in writing signed by duly authorized representatives of each party with express mention thereto of this Agreement.
7. **ENTIRE AGREEMENT:** The following documents along with all addenda issued thereto shall be deemed to form and be read and construed as integral part of this Agreement and in case of any contradiction between or among them the priority in which a document would prevail over another would be as laid down below beginning from the highest priority to the lowest priority:
 1. This Agreement;
 2. APPENDIX of this Agreement; and
 3. RFP document along with its Corrigendum & Addendum
8. **PRIVITY:** Neither this Agreement nor any provision hereof is intended to confer upon any person/s other than the Parties to this Agreement any rights or remedies hereunder.

9. DUE AUTHORIZATION: Each of the undersigned hereby represents to the other that she/he is authorized to enter into this Agreement and bind the respective parties to this Agreement.
10. COUNTERPART: This Agreement is executed in duplicate, and each copy is treated as original for all legal purposes.
11. This Agreement shall be read in conjunction with the RFP , and in the event of any matter not explicitly covered herein, the relevant provisions of the RFP shall apply, subject always to the document priority defined under Clause 7.
12. Further the following document attached hereto shall be deemed to form an integral part of this Service Level Agreement:

#	Document Type	Document Description
1.	Complete Request for Proposal (RFP) Document	RFP document along with its Corrigendum & Addendum
2.	Break-up of Cost Components	MSI's Commercial Bid
3.	Bid submitted by MSI	MSI's Technical Bid

IN WITNESS WHEREOF, the parties hereto have caused this Agreement to be executed by their duly authorized representatives as of the date and day first mentioned above.

State Bank of India

By:
Name:
Designation:
Date:

_____ **Service Provider**

By:
Name:
Designation:
Date:

WITNESS:

1.

1.

2.

2.

Transition & Knowledge Transfer Plan

1. Introduction and Purpose

1.1 This Exit, Transition and Knowledge Transfer Management Appendix (“Appendix”) describes the duties and responsibilities of the Service Provider / Managed Service Integrator (“MSI”) and State Bank of India (“the Bank”) to ensure proper transition of the Services and to ensure complete knowledge transfer upon expiry or termination of the Agreement or at the conclusion of the Operations & Maintenance period.

1.2 The objectives of this Appendix are to:

- (a) ensure a smooth transition of the Services from the Service Provider to a New / Replacement Service Provider or back to the Bank;
- (b) clearly define the responsibilities of both parties in relation to exit and transfer; and
- (c) ensure transfer of all relevant assets, documentation, software, data and knowledge related to the Services.

2. General Exit and Continuity Obligations

2.1 Where the Bank intends to continue equivalent or substantially similar services to the Services after termination or expiry of the Agreement, either by performing them itself or through a Replacement Service Provider, the Service Provider shall ensure a smooth transition and shall co-operate fully with the Bank and/or the Replacement Service Provider.

2.2 The Service Provider shall continue to provide the Services and discharge all Operations & Maintenance responsibilities until expiry or termination of the Agreement and during any agreed transition period.

2.3 If required by the Bank, and upon not less than fifteen (15) days’ prior written notice, the Service Provider shall continue to provide the Services or an agreed part thereof for a period not exceeding six (6) months beyond the expiry or termination date of the Agreement.

- (a) Services shall be provided at the rates already specified in the Agreement; and
- (b) materials and other costs, if any, shall be charged at a reasonable price agreed between the parties.

3. Assistance During Procurement and Transition

3.1 During any procurement process initiated by the Bank in anticipation of expiry or termination of the Agreement, the Service Provider shall cooperate fully with the Bank and any actual or potential Replacement Service Providers.

3.2 The Service Provider shall comply with all reasonable requests to provide information relating to operation of the Services, including:

- (a) hardware and software used;
- (b) system inter-working and coordination with other application owners;
- (c) performance reports;

- (d) agreed procedures and configurations; and
 - (e) procedures used for handling data,
- to the extent reasonably necessary to enable an effective tendering and transition process.

3.3 The Service Provider shall not be required to:

- (a) disclose costs of delivery of the Services or its internal financial records;
- (b) disclose information to any Replacement Service Provider unless a confidentiality agreement is in place; or
- (c) disclose information which it is prohibited from disclosing by law.

4. Commercial Principles Applicable to Exit Support

4.1 Where the Service Provider does not utilize resources in addition to those normally used to deliver the Services prior to expiry or termination, no additional charges shall apply.

4.2 Where additional resources, staff time, materials or costs are required, the Bank shall pay:

- (a) staff time at rates agreed in advance; and
- (b) materials and other costs at reasonable prices agreed with the Bank.

4.3 The Bank may request redeployment of existing Service Provider resources to support exit activities. Where such redeployment prevents achievement of service levels or deliverables, the Bank shall not claim penalties or liquidated damages for the same, subject to prior agreement.

5. Knowledge Transfer and Key Personnel

5.1 The Service Provider shall provide structured knowledge transfer necessary to enable the Bank or a Replacement Service Provider to continue performance of the Services.

5.2 The Service Provider shall make available such Key Personnel who have been involved in delivery of the Services, as mutually agreed, to assist during the transition period.

Such services shall be provided on a time and materials basis at agreed rates.

6. Documentation Transfer

6.1 Six (6) months prior to expiry or within two (2) weeks of notice of termination, the Service Provider shall deliver a full, accurate and up-to-date set of documentation relating to all elements of the Services, including operational, technical, system, and service management documentation as defined in the Agreement and its appendices.

7. Transfer of Configuration Management Database (CMDB)

7.1 Six (6) months prior to expiry or within two (2) weeks of notice of termination, the Service Provider shall deliver to the Bank a full, accurate and up-to-date cut of content from the Configuration Management Database (or equivalent) used for delivery of the Services.

8. Transfer of Assets

8.1 Six (6) months prior to expiry or within two (2) weeks of notice of termination, the Service Provider shall provide an Asset Register identifying:

- (a) assets eligible for transfer to the Bank; and
- (b) assets ineligible for transfer but essential to delivery of the Services, including purpose and reason for ineligibility.

8.2 Within one (1) month of receipt of the Asset Register, the Bank shall notify the Service Provider of the assets required to be transferred, and the parties shall prepare a draft transfer plan.

8.3 Where Required Assets are not located on Bank premises:

- (a) the Service Provider shall dismantle and pack such assets;
- (b) charges for assets not owned by the Bank shall be fair and reasonable having regard to condition and fair market value; and
- (c) the Bank shall not be responsible for such assets prior to transfer.

8.4 The Service Provider warrants that transferred assets benefit from any remaining manufacturer's warranty, to the extent such warranties are transferable.

9. Transfer of Software Licenses and Software

9.1 Six (6) months prior to expiry or within two (2) weeks of notice of termination, the Service Provider shall deliver all software licenses purchased by the Bank and used for provision of the Services.

9.2 The Service Provider shall deliver details of all Service Provider and third-party software licenses used in providing the Services, including license terms.

9.3 The Bank shall bear agreed costs associated with transfer of licenses. Where transfer is not possible, alternative arrangements shall be discussed.

9.4 Where the Bank is the owner of the software, the Service Provider shall deliver up-to-date versions of source code, architecture documentation, release documentation, testing tools, test results, and code handover plans as provided under the Agreement.

10. Transfer of Service Management and Knowledge Base

10.1 Six (6) months prior to expiry or within two (2) weeks of notice of termination, the Service Provider shall deliver:

- (a) service desk handover plans;
- (b) historical and outstanding service desk data including incidents, problems, changes and requests;
- (c) tools and topology details;
- (d) configuration and deployment details; and
- (e) monitoring tools and configurations.

10.2 The Service Provider shall also deliver a full, accurate and up-to-date extract of the operational knowledge base used to support the Services, subject to legal disclosure constraints.

11. Transfer of Data

11.1 Upon expiry or termination, the Service Provider shall cease use of the Bank's data.

11.2 Unless instructed to destroy such data, the Service Provider shall within one (1) month provide:

- (a) an inventory of Bank data held; and/or
- (b) a draft data transfer plan.

12. Training Services

12.1 The Service Provider shall assist in identifying and specifying training requirements to enable the Bank or Replacement Service Provider to adopt the transferred assets, data and systems.

12.2 Training services and charges shall be agreed between the parties.

12.3 Subject to agreement, the Service Provider shall prepare a training strategy, training materials and training plan as stipulated in the Agreement.

13. Exit Transition Planning and Support

13.1 Six (6) months prior to expiry or within ten (10) working days of notice of termination, the Service Provider shall assist in developing an exit transition plan covering:

- (a) timetable;
- (b) resources;
- (c) assumptions;
- (d) activities;
- (e) responsibilities; and
- (f) risks.

13.2 The Service Provider shall provide change logs, backup history, database dumps (excluding proprietary tools), incident logs and work-in-progress transfer plans as required under the Agreement.

14. Subcontractors

14.1 The Service Provider shall provide details of subcontractors used in the Services.

14.2 The Service Provider shall not restrain subcontractors from engaging with a Replacement Service Provider, subject to contractual and legal constraints.

15. Vacation of Bank Premises

15.1 Prior to expiry or termination, the Service Provider shall provide a plan for vacating Bank premises.

15.2 Unless otherwise agreed, all costs relating to vacation, equipment removal, personnel redeployment and restoration of premises shall be borne by the Service Provider.

_____ **XXXX** _____

NON-DISCLOSURE AGREEMENT

THIS RECIPROCAL NON-DISCLOSURE AGREEMENT (the “Agreement”) is made at _____ between:

State Bank of India constituted under the State Bank of India Act, 1955 having its Corporate Centre and Central Office at State Bank Bhavan, Madame Cama Road, Nariman Point, Mumbai-21 and its Global IT Centre at Sector-11, CBD Belapur, Navi Mumbai- 400614 through its _____ Department (hereinafter referred to as “Bank” which expression includes its successors and assigns) of the ONE PART;

And

_____ a private/public limited company/LLP/Firm incorporated under the provisions of the Companies Act, 1956/ Limited Liability Partnership Act 2008/ Indian Partnership Act 1932 having its registered office at _____ (hereinafter referred to as “_____” which expression shall unless repugnant to the subject or context thereof, shall mean and include its successors and permitted assigns) of the OTHER PART;

And Whereas

1. _____ is carrying on business of providing _____, has agreed to _____ for the Bank and other related tasks.

2. For purposes of advancing their business relationship, the parties would need to disclose certain valuable confidential information to each other (the Party receiving the information being referred to as the “Receiving Party” and the Party disclosing the information being referred to as the “Disclosing Party. Therefore, in consideration of covenants and agreements contained herein for the mutual disclosure of confidential information to each other, and intending to be legally bound, the parties agree to terms and conditions as set out hereunder.

NOW IT IS HEREBY AGREED BY AND BETWEEN THE PARTIES AS UNDER

1. Confidential Information and Confidential Materials:

- (a) “Confidential Information” means non-public information that Disclosing Party designates as being confidential or which, under the circumstances surrounding disclosure ought to be treated as confidential. “Confidential Information” includes, without limitation, information relating to developed, installed or purchased Disclosing Party software or hardware products, the information relating to general architecture of Disclosing Party’s network, information relating to nature and content of data stored within network or in any other storage media, Disclosing Party’s business policies, practices, methodology, policy design delivery, and information received from others that Disclosing Party is obligated to treat as confidential. Confidential Information disclosed to Receiving Party by any Disclosing Party Subsidiary and/ or agents is covered by this agreement
- (b) Confidential Information shall not include any information that: (i) is or subsequently becomes publicly available without Receiving Party’s breach of any obligation owed to Disclosing party; (ii) becomes known to Receiving Party free from any confidentiality obligations prior to Disclosing Party’s disclosure of such information to Receiving Party; (iii) became known to Receiving Party from a source other than Disclosing Party other than by the breach of an obligation of confidentiality owed to Disclosing Party and without confidentiality restrictions on use and disclosure; or (iv) is independently developed by Receiving Party.
- (c) “Confidential Materials” shall mean all tangible materials containing Confidential Information, including without limitation written or printed documents and computer disks or tapes, whether machine or user readable.

2. Restrictions

- (a) Each party shall treat as confidential the Contract and any and all information (“confidential information”) obtained from the other pursuant to the Contract and shall not divulge such information to any person (except to such party’s “Covered Person” which term shall mean employees, contingent workers and professional advisers of a party who need to know the same) without the other party’s written consent provided that this clause shall not extend to information which was rightfully in the possession of such party prior to the commencement of the negotiations leading to the Contract, which is already public knowledge or becomes so at a future date (otherwise than as a result of a breach of this clause). Receiving Party will have executed or shall execute appropriate written agreements with Covered Person, sufficient to enable it to comply with all the provisions of this Agreement. If the Service Provider appoints any Sub-Contractor (if allowed) then the Service Provider may disclose confidential information to such Sub-Contractor subject to such Sub Contractor giving the Bank an undertaking in similar terms to the provisions of this clause. Any breach of this Agreement by Receiving Party’s Covered Person or Sub-Contractor shall also be constructed a breach of this Agreement by Receiving Party.
- (b) Receiving Party may disclose Confidential Information in accordance with judicial or other governmental order to the intended recipients (as detailed in this clause), provided Receiving Party shall give Disclosing Party reasonable notice (provided not restricted by applicable laws) prior to such disclosure and shall comply with any applicable protective order or equivalent. The intended recipients for this purpose are:
 - i. the statutory auditors of the either party and

- ii. government or regulatory authorities regulating the affairs of the parties and inspectors and supervisory bodies thereof

- (c) Confidential Information and Confidential Material may be disclosed, reproduced, summarized or distributed only in pursuance of Receiving Party's business relationship with Disclosing Party, and only as otherwise provided hereunder. Receiving Party agrees to segregate all such Confidential Material from the confidential material of others in order to prevent mixing.

3. **Rights and Remedies**

- (a) Receiving Party shall notify Disclosing Party immediately upon discovery of any unauthorised used or disclosure of Confidential Information and/ or Confidential Materials, or any other breach of this Agreement by Receiving Party and will cooperate with Disclosing Party in every reasonable way to help Disclosing Party regain possession of the Confidential Information and/ or Confidential Materials and prevent its further unauthorised use.
- (b) Receiving Party shall return all originals, copies, reproductions and summaries of Confidential Information or Confidential Materials at Disclosing Party's request, or at Disclosing Party's option, certify destruction of the same.
- (c) Receiving Party acknowledges that monetary damages may not be the only and / or a sufficient remedy for unauthorised disclosure of Confidential Information and that disclosing party shall be entitled, without waiving any other rights or remedies (including but not limited to as listed below), to injunctive or equitable relief as may be deemed proper by a Court of competent jurisdiction.
 - i. Suspension of access privileges
 - ii. Change of personnel assigned to the job
 - iii. Termination of contract
- (d) Disclosing Party may visit Receiving Party's premises, with reasonable prior notice and during normal business hours, to review Receiving Party's compliance with the term of this Agreement.

4. **Miscellaneous**

- (a) All Confidential Information and Confidential Materials are and shall remain the sole and of Disclosing Party. By disclosing information to Receiving Party, Disclosing Party does not grant any expressed or implied right to Receiving Party to disclose information under the Disclosing Party's patents, copyrights, trademarks, or trade secret information.
- (b) Confidential Information made available is provided "As Is," and disclosing party disclaims all representations, conditions and warranties, express or implied, including, without limitation, representations, conditions or warranties of accuracy, completeness, performance, fitness for a particular purpose, satisfactory quality and merchantability provided same shall not be construed to include fraud or willful default of disclosing party.
- (c) Neither party grants to the other party any license, by implication or otherwise, to use the Confidential Information, other than for the limited purpose of evaluating or advancing a business relationship between the parties, or any license rights whatsoever in any patent, copyright or other intellectual property rights pertaining to the Confidential Information.
- (d) The terms of Confidentiality under this Agreement shall not be construed to limit either party's right to independently develop or acquire product without use of the other party's

Confidential Information. Further, either party shall be free to use for any purpose the residuals resulting from access to or work with such Confidential Information, provided that such party shall maintain the confidentiality of the Confidential Information as provided herein. The term “residuals” means information in non-tangible form, which may be retained by person who has had access to the Confidential Information, including ideas, concepts, know-how or techniques contained therein. Neither party shall have any obligation to limit or restrict the assignment of such persons or to pay royalties for any work resulting from the use of residuals. However, the foregoing shall not be deemed to grant to either party a license under the other party’s copyrights or patents.

- (e) This Agreement constitutes the entire agreement between the parties with respect to the subject matter hereof. It shall not be modified except by a written agreement dated subsequently to the date of this Agreement and signed by both parties. None of the provisions of this Agreement shall be deemed to have been waived by any act or acquiescence on the part of Disclosing Party, its agents, or employees, except by an instrument in writing signed by an authorised officer of Disclosing Party. No waiver of any provision of this Agreement shall constitute a waiver of any other provision(s) or of the same provision on another occasion.
- (f) In case of any dispute, both the parties agree for neutral third-party arbitration. Such arbitrator will be jointly selected by the two parties, and he/she may be an auditor, lawyer, consultant or any other person of trust. The said proceedings shall be conducted in English language at Mumbai and in accordance with the provisions of Indian Arbitration and Conciliation Act 1996 or any Amendments or Re-enactments thereto. Nothing in this clause prevents a party from having recourse to a court of competent jurisdiction for the sole purpose of seeking a preliminary injunction or any other provisional judicial relief it considers necessary to avoid irreparable damage. This Agreement shall be governed by and construed in accordance with the laws of Republic of India. Each Party hereby irrevocably submits to the exclusive jurisdiction of the courts of Mumbai.
- (g) Subject to the limitations set forth in this Agreement, this Agreement will inure to the benefit of and be binding upon the parties, their successors and assigns.
- (h) If any provision of this Agreement shall be held by a court of competent jurisdiction to be illegal, invalid or unenforceable, the remaining provisions shall remain in full force and effect.
- (i) The Agreement shall be effective from _____ (“Effective Date”) and shall be valid for a period of _____ year(s) thereafter (the “Agreement Term”). The foregoing obligations as to confidentiality shall survive the term of this Agreement and for a period of five (5) years thereafter provided confidentiality obligations with respect to individually identifiable information, customer’s data of Parties or software in human-readable form (e.g., source code) shall survive in perpetuity.

5. **Suggestions and Feedback**

Either party from time to time may provide suggestions, comments or other feedback to the other party with respect to Confidential Information provided originally by the other party (hereinafter “feedback”). Both parties agree that all Feedback is and shall be entirely voluntary and shall not in absence of separate agreement, create any confidentially obligation for the receiving party. However, the Receiving Party shall not disclose the source of any feedback without the providing party’s consent. Feedback shall be clearly designated as such and, except as otherwise provided herein, each party shall be free to disclose and

use such Feedback as it sees fit, entirely without obligation of any kind to other party. The foregoing shall not, however, affect either party’s obligations hereunder with respect to Confidential Information of other party.

Dated this _____ day of _____ (Month) 20__ at _____ (place)

For and on behalf of _____

Name		
Designation		
Place		
Signature		

For and on behalf of _____

Name		
Designation		
Place		
Signature		

APPENDIX-C**Payment Schedule**

**T = Contract signing Date; T1 = Pilot Phase Go-Live Date;
T2 = Phase-1 Go-Live Date; T3 = Phase-2 Go-Live Date**

Milestone	Payment Milestone Description	Deliverable	Payment % (on approval of deliverable)	Timeline (in months)
Pilot Phase (5 circles and Corporate Centre CC, 250 branches)				
M1.1a	Inception and Design Phase	1. Project Plan 2. Inception Report 3. Functional Requirement Specification document 4. System Requirement Specification document 5. Design Basis Report (Includes HLD (for overall project) and LLD (for pilot phase))	5% of Pilot Phase Component Cost	T + 1 Months
M1.1b	Site Survey	1. Site Survey Report and Final BoQ for Pilot Phase Scope of Work (5 circles and Corporate Centre LHO, 250 branches)	5% of Pilot Phase Component Cost	T + 2 Months
M1.2	Delivery and receipt of Hardware and Software (licenses) at branches/LHO	1. Material Test Plan 2. Delivery Challan 3. Unpriced PO copy 4. OEM Datasheet 5. Packing List 6. Software License (CC) 7. Verification report from Bank/Bank authorized agency for delivered items	40% of Pilot Phase Component Cost	T + 4 Months
M1.3a	Installation and Commissioning of 250 Branches	1. Installation reports 2. Acceptance Report on hardware and relevant software installations 3. Verification report from	5% of Pilot Phase Component Cost	T + 5 Months

T = Contract signing Date; T1 = Pilot Phase Go-Live Date; T2 = Phase-1 Go-Live Date; T3 = Phase-2 Go-Live Date				
Milestone	Payment Milestone Description	Deliverable	Payment % (on approval of deliverable)	Timeline (in months)
M1.3b	Installation and Commissioning of 5 circles and Corporate Centre CC	Bank/Bank authorized agency for completion of installation/commissioning	5% of Pilot Phase Component Cost	
M1.4a	UAT and Go-Live of 250 Branches	1. UAT test plan 2. Training Completion report 3. Completion of UAT and closure of observations report 4. Acceptance of UAT and Go-Live certificate from Bank for Pilot Phase	5% of Pilot Phase Component Cost	T + 6 Months (T1)
M1.4b	UAT and Go-Live of 5 circles and Corporate Centre CC		5% of Pilot Phase Component Cost	
M1.5*	Operation and Maintenance of Pilot Phase	1. Quarterly SLA reports	Remaining Pilot Phase Component Cost and Pilot OPEX Cost in 24 Quarters	T1 + 72 Months
Phase-1: 3 LHO CC and ~2250 branches				
M2.1a	Design Phase	1. Project Plan 2. Functional Requirement Specification document 3. System Requirement Specification document 4. Design Basis Report (Includes LLD for Phase-1 scope)	5% of Phase-1 Component Cost	T + 7 Months
M2.1b	Site Survey	1. Site Survey Report and Final BoQ for Phase-1 Scope of Work (Additional 3 circles LHO and ~2250 branches)	5% of Phase-1 Component Cost	T + 8 Months
M2.2	Delivery and Receipt of Hardware and Software (licenses) at	1. Material Test Plan 2. Delivery Challan 3. Unpriced PO copy 4. OEM Datasheet 5. Packing List 6. Software License (CC)	40% of Phase-1 Component Cost	T + 10 Months

**T = Contract signing Date; T1 = Pilot Phase Go-Live Date;
T2 = Phase-1 Go-Live Date; T3 = Phase-2 Go-Live Date**

Milestone	Payment Milestone Description	Deliverable	Payment % (on approval of deliverable)	Timeline (in months)
	branches/LHO	7. Verification report from Bank/Bank authorized agency for delivered items		
M2.3a	Installation and Commissioning of Phase-1 branches (~2250 branches)	1. Installation reports 2. Acceptance Report on hardware and relevant software installations	5% of Phase-1 Component Cost	T + 11 Months
M2.3b	Installation and Commissioning of Phase-1 LHO CC (3 Nos)	3. Verification report from Bank/Bank authorized agency for completion of installation/commissioning	5% of Phase-1 Component Cost	
M2.4a	UAT and Go-Live of Phase-1 branches (~2250 branches)	1. UAT test plan 2. Training Completion report 3. Completion of UAT and closure of observations report	5% of Phase-1 Component Cost	T + 12 Months (T2)
M2.4b	UAT and Go-Live of Phase-1 LHO CC (3 Nos)	4. Acceptance of UAT and Go-Live certificate from Bank for Pilot Phase	5% of Phase-1 Component Cost	
M2.5*	Operation and Maintenance of Pilot Phase (up to Phase-2 Go-Live)	Quarterly SLA reports	Remaining Phase-1 Component Cost and Pilot OPEX Cost in 22 Quarters	T2 + 66 Months
Phase-2: 9 LHO CC, and ~2500 branches				
M3.1a	Design Phase	1. Project Plan 2. Functional Requirement Specification document 3. System Requirement Specification document 4. Design Basis Report (Includes LLD for Phase-II scope)	5% of Phase-2 Component Cost	T + 13 Months
M3.1b	Site Survey	1. Site Survey Report and Final BoQ for Phase-2 Scope of Work (Additional 3 circles LHO and ~2500 branches)	10% of Phase-2 Component Cost	T + 14 Months

T = Contract signing Date; T1 = Pilot Phase Go-Live Date; T2 = Phase-1 Go-Live Date; T3 = Phase-2 Go-Live Date				
Milestone	Payment Milestone Description	Deliverable	Payment % (on approval of deliverable)	Timeline (in months)
M3.2	Delivery and Receipt of Hardware and Software (licenses) at branches/LHO	1. Material Test Plan 2. Delivery Challan 3. Unpriced PO copy 4. OEM Datasheet 5. Packing List 6. Software License (CC) 7. Verification report from Bank/Bank authorized agency for delivered items	40% of Phase-2 Component Cost	T + 16 Months
M3.3a	Installation and Commissioning of Phase-2 branches (~2500 branches)	1. Installation reports 2. Acceptance Report on hardware and relevant software installations 3. Verification report from Bank/Bank authorized agency for completion of installation/commissioning	5% of Phase-2 Component Cost	T + 17 Months
M3.3b	Installation and Commissioning of LHO CC (9 Nos)		5% of Phase-2 Component Cost	
M3.4a	UAT and Go-Live of Phase-2 branches (~2500 branches)	1. UAT test plan 2. Training Completion report 3. Completion of UAT and closure of observations report	5% of Phase-2 Component Cost	T + 18 Months (T3)
M3.4b	UAT and Go-Live of Phase-2 LHO CC (9 Nos)	4. Acceptance of UAT and Go-Live certificate from Bank for Pilot Phase	5% of Phase-2 Component Cost	
M3.5	Operation and Maintenance of entire scope of work	Quarterly SLA reports	Remaining Phase-2 Component Cost and Pilot OPEX Cost in 20 Quarters	T3 + 60 Months

**Please note that under milestones M1.5 and M2.5 is considered for 72 months and 66 months assuming Go-Live for Phase-1 and Phase-2 within 12 Months and 18 Months respectively from contract signing date, if there is any delay in the Go-Live which is attributable to bidder, the maintenance of preceding phase needs to be continued by bidder until Go-Live of subsequent phase at no extra cost to the Bank. This is over and above any applicable liquidated damage or any other SLA penalties for such delays.*

Data Processing Agreement

This Data Processing Agreement ("Agreement") forms part of the Contract for Services ("Service Level Agreement") dated _____ between:

(i) State Bank of India ("Data Fiduciary")

AND

(ii) M/s. _____ ("Data Processor")

WHEREAS:

(A) State Bank of India (hereafter referred to as "SBI") acts as a Data Fiduciary.

(B) SBI wishes to contract certain Services (provided in **Schedule 1**), which imply the processing of personal data (provided in **Schedule 2**), to the Data Processor.

The Parties seek to ensure compliance with the Digital Personal Data Protection Act 2023 ('the DPDP Act') together with rules, regulations and Offshore Data Protection Regulations and implement the Agreement that complies with the requirements of the current legal framework in relation to data processing and with the applicable Data Privacy Laws.

(C) The Parties wish to lay down their rights and obligations.

IT IS AGREED AS FOLLOWS:

1. Definitions and Interpretation:

1.1 Unless otherwise defined herein, terms and expressions used in this Agreement shall have the following meaning:

1.1.1 "Agreement" has the meaning given to it as this Data Processing Agreement and all schedules.

1.1.2 "Data Fiduciary" has the meaning given to it in Data Privacy Laws and Offshore Data Protection Regulations.

1.1.3 "Data Privacy Laws" shall mean Digital Personal Data Protection Act 2023, rules and regulations made thereunder, the Information Technology Act, 2000, the Information Technology (Reasonable Security Practices & Procedures and Sensitive Personal Data or Information) Rules

2011 and any other laws, rules and regulations that is or shall become applicable regarding data protection and data processing in India.

1.1.4 “Data Principal” has the meaning given to it in the Data Privacy Laws and Offshore Data Protection Regulations.

1.1.5 “Party” or “Parties” has the meaning given to it as either Data Fiduciary or the Processor.

1.1.6 "Personal Data" has the meaning given to it in the Data Privacy Laws and under the Offshore Data Protection Regulations.

1.1.7 " Data Processor" has the meaning given to it in the Data Privacy Laws and Offshore Data Protection Regulations.

1.1.8 “Offshore Data Protection Regulations” shall mean data protection regulations including EU General Data Protection Regulation and such other regulations as may be applicable for processing of Personal Data in jurisdictions other than India.

1.1.9 “Sub-processor” has the meaning given to it as means any person appointed by or on behalf of Data Processor to process Personal Data of Data Principals in India or across any other jurisdiction on behalf of Data Fiduciary in connection with the Agreement.

1.1.10 "Data Transfer" shall mean

(i) a transfer of Personal Data from Data Fiduciary to a Data Processor; or

(ii) onward transfer of Personal Data from a Data Processor to a Sub-processor, or between two establishments of a Data Processor, to the extent and in the manner as envisaged in this Agreement.

1.1.11 "Services" has the meaning given to it as the services to be performed by the Data Processor described in the Service Level Agreement and as provided in Schedule 1.

1.1.12 “Supervisory Authority” has the meaning given to it in the Data Privacy Laws and Offshore Data Protection Regulations.

1.1.13 “Personal Data Breach” has the meaning given to it in Data Privacy Laws and Offshore Data Protection Regulations.

1.1.14 “Personnel” has the meaning given to it as the personnel of the Data Processor, Sub processors who provide the applicable Services;

2. Processing of Personal Data:

2.1 In the course of providing Services to Data Fiduciary, the Data Processor may process Personal Data on behalf of the Data Fiduciary.

2.2 Data Processor shall:

2.2.1 comply with all applicable Data Privacy Laws in the Processing of Personal Data; and where the data principal is within the jurisdiction of Offshore Data Protection Regulations, comply with

such respective Offshore Data Protection Regulations.

2.2.2 not Process Personal Data other than on the relevant documented instructions of the Data Fiduciary.

3. PROCESSOR OBLIGATIONS:

3.1 Processor and Processor Personnel:

3.1.1 The Data Fiduciary will determine the scope, purposes, and manner by which the Personal Data may be accessed or processed by the Data Processor. The Data Processor will process the Personal Data only as set forth in Data Fiduciary's written instructions.

3.1.2 The Data Processor shall never process the Personal Data in a manner inconsistent with the Data Fiduciary's documented instructions. The Data Processor shall immediately inform the Data Fiduciary if, in its opinion, an instruction infringes Data Privacy Laws or other directions issued by sectoral regulators in India or applicable Offshore Data Protection Regulations.

3.1.3 The Data Processor shall take reasonable steps to ensure the reliability of any employee, agent or Sub-processor who may have access to Personal Data, ensuring in each case that access is strictly limited to those individuals who need to know / access the relevant Personal Data, as strictly necessary for the purposes of the Service Level Agreement, and to comply with applicable Data Privacy Laws and Offshore Data Protection Regulations in the context of that individual's duties to the Data Processor, ensuring that all such individuals are subject to confidentiality undertakings or professional or statutory obligations of confidentiality. Necessary Data Privacy training should be provided by the processor to their employees handling Personal Data.

3.1.4 Notwithstanding clause 3.1, if the Data Processor (and its Personnel) is required to process the Personal Data pursuant to the Offshore Data Protection Regulations or to satisfy any other legal obligations, the Data Processor shall notify Data Fiduciary of such requirement before it processes the Personal Data. and in case of processing of Personal Data under this clause it shall not be construed as processing of Personal Data by the Data Processor under this Agreement

3.1.5 The Data Processor shall immediately notify Data Fiduciary if, in Data Processor's opinion, Data Fiduciary's documented data processing instructions breach the Data Privacy Laws or Offshore Data Protection Regulations or sectoral regulators in India.

3.1.6 The purpose of the Data Processor processing Personal Data is the performance of the Services pursuant to the Service Level Agreement.

3.2 The Data Processor shall comply with Offshore Data Protection Regulations while processing data of an individual residing within the jurisdiction of the Offshore Data Protection Regulations. In the event of any liability arising on account of act or conduct of the Data Processor in processing data of a person residing within the jurisdiction of the Offshore Data Protection Regulations, the Data Processor shall be solely responsible for all pecuniary or other consequence on account of such liability.

3.3 Security:

3.3.1 Taking into account the nature, scope, context and purposes of Processing (provided in Schedule 1 & 2) as well as the risk of varying likelihood and severity for the rights and freedoms of natural persons, Data Processor shall in relation to Personal Data implement appropriate technical and organizational measures to ensure a level of security appropriate to that risk.

3.3.2 In assessing the appropriate level of security, Data Processor shall take into account, in particular, risks related to processing of Personal Data.

3.3.3 The Data Processor shall use appropriate technical and organisational measures to prevent the unauthorised or unlawful processing of Personal Data and protect against accidental loss or destruction of, or damage to, any Personal Data during processing activities. It shall implement and maintain the security safeguards and standards based on the IS policy of State Bank of India as updated and notified to the Data Processor by State Bank of India from time to time. The Data Processor will not decrease the overall level of security safeguards and standards during the term of this Agreement without State Bank of India's prior consent.

3.4 Sub-Processing:

3.4.1 The Data Processor shall not appoint (or disclose any Personal Data to) any Sub- Processors without prior written authorisation from Data Fiduciary. The Data Processor shall provide Data Fiduciary with [**no less than XX days**] prior written (including email) notice before engaging a new Sub processor thereby giving Data Fiduciary an opportunity to object to such changes. If the Data Fiduciary wishes to object to such new Sub processor, then it may terminate the relevant Services without penalty by providing written notice of termination which includes an explanation of the reasons for such objection.

3.4.2 The Data Processor shall include in any contract with its Sub Processors who will process Personal Data on Data Fiduciary's behalf, obligations on such Sub Processors which are no less onerous than those obligations imposed upon the Data Processor in this Agreement relating to Personal Data. The Data Processor shall be liable for the acts and omissions of its Sub Processors to the same extent to which the Data Processor would be liable if performing the services of each Sub Processor directly under the terms of this Agreement.

3.5 Data Principal Rights:

3.5.1 Data Principal whose Personal Data is processed under this Agreement have all rights conferred on them under applicable Data Privacy Laws and Offshore Data Protection Regulations, in relation to their Personal Data (including, but not limited to, rights of access, correction, erasure, grievance, withdrawal of consent, and any other rights). All such requests shall be directed to Data Fiduciary, which is responsible for handling them in accordance with applicable Data Privacy Laws and Offshore Data Protection Regulations.

3.5.2 Taking into account the nature of the Processing, Data Processor shall assist, insofar as this is

possible, for the fulfilment of Data Fiduciary's obligations, as reasonably understood by Data Fiduciary, to respond to requests to exercise Data Principal rights under the Data Privacy Laws and Offshore Data Protection Regulations.

3.5.3 In case Data Principal Requests are received by the Data Processor, then the Data Processor shall:

3.5.3.1 promptly notify Data Fiduciary if it receives a request from a Data Principal and;

3.5.3.2 ensure that it does not respond to that request except on the documented instructions of Data Fiduciary;

3.5.3.3 inform Data Fiduciary of that legal requirement before the Data Processor responds to the request.

3.6 Personal Data Breach:

3.6.1 Data Processor shall notify Data Fiduciary promptly and without undue delay upon becoming aware of any actual or suspected Personal Data Breach, providing Data Fiduciary with sufficient details of the nature, scope, timing and potential impact of the breach to enable Data Fiduciary to fulfil its obligations under applicable Data Privacy Laws and Offshore Data Protection Regulations

3.6.2 Data Processor shall cooperate fully with Data Fiduciary and take all reasonable steps as may be directed by Data Fiduciary to investigate, mitigate, contain and remediate the Personal Data Breach, including providing Data Fiduciary with regular updates on the status and results of any such measures.

3.7 Data Protection Impact Assessment and Prior Consultation:

3.7.1 Data Processor shall provide all reasonable assistance to Data Fiduciary in carrying out any data protection impact assessments (DPIA) and any prior consultation with Supervisory Authorities or other competent data privacy authorities that Data Fiduciary reasonably deems necessary under applicable Data Privacy Laws in respect of the Processing of Personal Data.

3.7.2 Such assistance shall include descriptions of the Processing operations, and the categories of Personal Data involved; the purposes of the Processing; details of any technical and organizational measures implemented to safeguard Personal Data; and any other information that Data Fiduciary reasonably requests to complete the DPIA or consultation process.

3.8 Deletion or return of Personal Data:

3.8.1 Subject to this section 3.8 Processor shall, promptly and in any event within < **XX** > business days of the date of cessation of any Services under this Agreement either upon termination or expiry of the term of this Agreement (the "Cessation Date"), either delete, destroy or return all Personal

Data including copies of such Personal Data.

The Data Processor shall notify all Sub -Processors of the cessation and shall ensure that all such Sub Processor shall either delete, destroy or return the Personal Data (including copies of such Personal Data) to the Data Processor at the discretion of the Data Processor

3.8.2 Data Processor shall provide written certification to Data Fiduciary that it has fully complied with this section 3.8 within < **XX** > business days of the Cessation Date.

3.8.3 For enabling the detection of unauthorized access, its investigation, remediation and to prevent recurrence while allowing continued processing in the event of a compromise, retention of such logs and personal data shall be done for a period of one year, unless compliance with any law for the time being in force requires otherwise.

3.9 Audit Rights:

The Data Processor and the sub processors, if any, shall make available to Data Fiduciary and any or their representatives the information necessary to demonstrate its compliance with this Agreement and allow for and contribute to audits and inspections by allowing Data Fiduciary, a Supervisory Authority or their representatives to conduct an audit or inspection of that part of the Data Processor's business which is relevant to the Services [on at least an annual basis (or more frequently when mandated by a relevant Supervisory Authority or to comply with the Data Privacy Laws and] on reasonable notice, in relation to the Processing of Personal Data by the Processor.

3.10 Data Transfer:

3.10.1 Except as otherwise provided herein, the Data Processor shall not disclose Personal Data received here under to a third party or transfer it to another country without the Data Fiduciary's authorization. Except as otherwise provided herein, the Data Processor shall immediately notify the Data Fiduciary of any (planned) permanent or temporary transfers of Personal Data to a country outside of India and shall only perform such a transfer after obtaining authorization from the Data Fiduciary, which may be refused at its own discretion.

3.10.2 To the extent that the Data Fiduciary or the Data Processor are relying on a specific statutory mechanism to normalize international data transfers that is subsequently modified, revoked, or held in a court of competent jurisdiction to be invalid, the Data Fiduciary and the Data Processor agree to cooperate in good faith to promptly terminate the transfer or to pursue a suitable alternate mechanism that can lawfully acceptable.

3.11 Records:

The Data Processor shall maintain written records of its data processing activities pursuant to providing the Services to Data Fiduciary in accordance with Data Privacy Laws and Offshore Data Protection Regulations.

3.12 Notify:

The Data Processor shall immediately and fully notify Data Fiduciary in writing of any communications the Data Processor (or any of its Sub-processors) receives from third parties in connection with the processing of the Personal Data, including (without limitation) data principal request or other requests, notices or other communications from individuals, or their representatives, and/or any other supervisory authority or data protection authority or any other regulator (including a financial regulator) or court.

3.13 Indemnity:

Data Processor shall defend, indemnify, and hold harmless Data Fiduciary, its directors, officers, employees, agents, affiliates, and representatives from and against any and all claims, actions, proceedings, fines, penalties, liabilities, damages, losses, costs, expenses, prejudice, and injury (whether pecuniary or non-pecuniary), reputational or otherwise, incurred from Data Fiduciary, arising out of or in connection with:

- A. any Personal Data Breach (irrespective of the jurisdiction of the breach) resulting from Processor's negligence, including any such breach caused or contributed to by the Processor or its personnel;
- B. any unauthorized, wrongful, or unlawful Processing, access, disclosure, loss, or destruction of Personal Data;
- C. any failure by Processor to comply with Data Fiduciary's written instructions regarding Personal Data; and
- D. any third-party claims (including those by customers, data principals, or regulators) resulting from any act, omission, or default of the Processor or its personnel.

3.14. Representation and Warranties:

The Data Processor represents and warrants that it will comply with all applicable Data Privacy Laws and Offshore Data Protection Regulations relating to the protection, disclosure, processing and use of Personal Data.

3.15. The Parties agree that in order to give effect / further effect to the provisions of the Data Privacy Laws and Offshore Data Protection Regulations and any amendment therein, this Agreement shall be amended, and the Parties shall execute and be bound by all such amendments as shall be necessary for the purpose of the arrangement as envisaged by this Agreement.

4. SBI'S OBLIGATIONS:

SBI shall:

4.1 in its use of the Services, process the Personal Data in accordance with the requirements of the Data Privacy Laws and Offshore Data Protection Regulations.

4.2 use its reasonable endeavours to promptly notify the Data Processor if it becomes aware of any breaches or of other irregularities with the requirements of the Data Privacy Laws in respect of the Personal Data processed by the Data Processor.

5. General Terms:

5.1. Duration and Termination:

This Agreement shall come into effect on the date execution and shall be valid for the period of [**XX**] years but shall be liable to be termination by either party by serving Notice to the other party of not less than [**XX**] days. Provided however, the Data Fiduciary shall be entitled to forthwith (without prior) notice, terminate this Agreement if, the Data Processor, to the sole determination of the Data Processor, commits any act that amounts to Personal Data Breach.

Notwithstanding the termination of this Agreement the provisions of clause 3.13 (Indemnity), clause 5.2 (Confidentiality) shall continue to be valid and binding upon the Data Processor.

5.2 Confidentiality:

Without prejudice to any existing contractual arrangements between the Parties, the Data Processor shall treat all Personal Data as strictly confidential and it shall inform all its employees, agents and/or approved sub-processors engaged in processing the Personal Data of the confidential nature of the Personal Data. The Data Processor shall ensure that all such persons or parties have signed an appropriate confidentiality agreement, are otherwise bound to a duty of confidentiality, or are under an appropriate statutory obligation of confidentiality

5.3 Notices:

All notices and communications given under this Agreement must be in writing and will be delivered personally, sent by post or sent by email to the address or email address set out in the heading of this Agreement at such other address as notified from time to time by the Parties changing address.

5.4 Governing Law and Jurisdiction:

5.4.1 This Agreement is governed by the laws of INDIA.

5.4.2 Any dispute arising in connection with this Agreement, which the Parties will not be able to resolve amicably, will be submitted to the exclusive jurisdiction of the courts of MUMBAI.

IN WITNESS WHEREOF, this Agreement is entered into and becomes a binding part of the Service Level Agreement with effect from the date first set out below.

For SBI

Signature _____

Name _____

Title _____

Date Signed _____

For Processor M/s

Signature _____

Name _____

Title _____

Date Signed _____

SCHEDULE 1

1.1 Services

<<

Insert a description of the Services provided by the Data Processor (under the Service level Agreement, where relevant)

>>.

SCHEDULE 2

Personal Data Processing

Details of Processing Activities (detailed list of activities carried about by the processor)	Category of Personal Data (Categories of Data Principal whose personal data is processed)	Category of Data Principal	Nature of Processing Carried Out	Purpose(s) of Processing	Duration of Processing	Duration of Retention of Personal Data of Data Principal

SCHEDULE 3

Technical and Organisational Data Protection Measures

1. The Processor shall ensure that, in respect of all Personal Data it receives from or processes on behalf of SBI, it maintains security measures to a standard appropriate to:

1.1. the nature of the Personal Data; and

1.2. Safeguard from the harm that might result from unlawful or unauthorised processing or accidental loss, damage, or destruction of the Personal Data.

2. In particular, the Processor shall:

2.1. have in place, and comply with, a security policy which:

2.1.1. defines security needs based on a risk assessment.

2.1.2. allocates responsibility for implementing the policy to a specific individual (such as the Processor's Data Protection Officer) or personnel and is provided to SBI on or before the commencement of this Agreement.

2.1.3. ensure that appropriate security safeguards and virus protection are in place to protect the hardware and software which is used in processing the Personal Data in accordance with best industry practice.

2.1.4. prevent unauthorised access to the Personal Data.

2.1.5. protect the Personal Data using pseudonymisation and encryption.

2.1.6. ensure the confidentiality, integrity and availability of the systems and services in regard to the processing of Personal Data.

2.1.7. ensure the fast availability of and access to Personal Data in the event of a physical or technical incident.

2.1.8. have in place a procedure for periodically reviewing and evaluating the effectiveness of the technical and organisational measures taken to ensure the safety of the processing of Personal Data.

2.1.9. ensure that its storage of Personal Data conforms with best industry practice such that the media on which Personal Data is recorded (including paper records and records stored electronically) are stored in secure locations and access by personnel to Personal Data is strictly monitored and controlled.

2.1.10. have secure methods in place for the transfer of Personal Data whether in physical form (for example, by using couriers rather than post) or electronic form (for example, by using encryption).

2.1.11. password protect all computers and other devices on which Personal Data is stored, ensuring that all passwords are secure, and that passwords are not shared under any circumstances.

2.1.12. not allow the storage of the Personal Data on any mobile devices such as laptops or tablets unless such devices are kept on its premises at all times.

2.1.13. take reasonable steps to ensure the reliability of personnel who have access to the Personal Data.

2.1.14. have in place methods for detecting and dealing with breaches of security

(including loss, damage, or destruction of Personal Data) including:

2.1.14.1. having a proper procedure in place for investigating and remedying breaches of the GDPR; and

2.1.14.2. notifying SBI as soon as any such security breach occurs.

2.1.14.3. Access logs and related Personal Data shall be retained for a period of one year for enabling the detection of unauthorized access, its investigation, remediation and to prevent recurrence while allowing continued processing, unless compliance with any law for the time being in force requires otherwise.

2.1.15. have a secure procedure for backing up all Personal Data and storing back-ups separately from originals; and

2.1.16. adopt such organisational, operational, and technological processes and procedures as are required to comply with the SBI's Information Security Policy as appropriate.

At the time of signing this Agreement, the Processor has the following technical and organizational measures in place: (To be vetted by SBI)

S. No	Controls to be implemented		Compliance (Yes / No)	If under implementation, give date by which implementation will be done
1	Whether the Processor has Information security policy in place with periodic reviews?			
2	Whether the Processor have operational processes with periodic review, including but not limited to:	a. Business Continuity Management		
		b. Backup management		
		c. Desktop/system/server/network device hardening with baseline controls		
		d. Patch Management		
		e. Port Management Media Movement		
		f. Log Management		
		g. Personnel Security		
		h. Physical Security		
		i. Internal security assessment processes		
3	Whether a proper documented Change Management process has been instituted by the Processor?			
4	Whether the Processor has a documented policy and process of Incident management /response?			
5	Whether the Processor's environment is suitably protected from external threats by way of:	a. Firewall		
		b. WAF		
		c. IDS/IPS		
		d. AD		
		e. AV		
		f. NAC		
		g. DLP		

S. No	Controls to be implemented		Compliance (Yes / No)	If under implementation, give date by which implementation will be done
		h. Any other technology		
6	Whether rules are implemented on Firewalls of the Processor environment as per an approved process?			
7	Whether firewall rule position is regularly monitored for presence of any vulnerable open port or any-any rule?			
8	Whether proper log generation, storage, management and analysis happens for the Processor application?			
9	Is the Processor maintaining all logs for forensic readiness related to:	a. Web		
		b. Application		
		c. DB		
		d. Configuration		
		e. User access		
10	Whether the Processor maintains logs for privileged access to their critical systems?			
11	Whether privilege access to the Processor environment is permitted from internet?			
12	Whether the Processor has captive SOC or Managed Service SOC for monitoring their systems and operations?			
13	Whether the Processor environment is segregated into militarized zone (MZ) and demilitarized zone (DMZ) separated by Firewall, where any access from an external entity is permitted through DMZ only?			
14	Whether Processor has deployed secure environments for their applications for:	a. Production		
		b. Disaster recovery		
		c. Testing environments		
15	Whether the Processor	a. Web		

S. No	Controls to be implemented	Compliance (Yes / No)	If under implementation, give date by which implementation will be done
	follows the best practices of creation of separate network zones (VLAN Segments) for:	b. App	
		c. DB	
		d. Critical applications	
		e. Non-Critical applications	
		f. UAT	
16	Whether the Processor configures access to officials based on a documented and approved Role Conflict Matrix?		
17	Whether Internet access is permitted on:	a. Internal servers	
		b. Database servers	
		c. Any other servers	
18	Whether the Processor has deployed a dedicated information security team independent of IT, reporting directly to MD/CIO for conducting security related functions & operations?		
19	Whether CERT-IN Empaneled ISSPs are engaged by the third party for ensuring security posture of their application?		
20	Whether quarterly vulnerability assessment and penetration testing is being done by the Processor for their infrastructure?		
21	Whether suitable Security Certifications (ISO, PCI-DSS etc.) of the security posture at vendor environment are in place?		
22	Whether the Processor has deployed any open source or free software in their environment?		
	If yes, whether security review has been done for such software?		
23	Whether the data shared with the Processor is owned by SBI (SBI = Information Owner)?		
24	Whether the data shared with the Processor is of sensitive nature?		

S. No	Controls to be implemented	Compliance (Yes / No)	If under implementation, give date by which implementation will be done
25	Whether the requirement and the data fields to be stored by the Processor is approved by Information Owner?		
26	Where shared, whether the bare minimum data only is being shared? (Please document the NEED for sharing every data field)		
27	Whether the data to be shared with Processor will be encrypted as per industry best standards with robust key management?		
28	Whether the Processor is required to store the data owned by State Bank?		
29	Whether any data which is permitted to be stored by the Processor will be completely erased after processing by the Processor at their end?		
30	Whether the data shared with the Processor is stored with encryption (Data at rest encryption)?		
31	Whether the data storage technology (Servers /Public Cloud/ Tapes etc.) has been appropriately reviewed by IT AO?		
32	Whether the Processor is required to share SBI specific data to any other party for any purpose?		
33	Whether a system of obtaining approval by the Processor from the IT Application Owner is put in place before carrying out any changes?		
34	Whether Processor is permitted to take any crucial decisions on behalf of SBI without written approval from IT Application Owner?		
	If not, are such instances being monitored? IT Application Owner to describe the system of monitoring such instances.		
35	Whether Application Owner has verified that the Processor has implemented efficient and sufficient preventive controls to protect SBI's interests against any damage under section 43 of IT Act?		
36	Whether the selection criteria for awarding the work to		

S. No	Controls to be implemented	Compliance (Yes / No)	If under implementation, give date by which implementation will be done
	Processor vendor is based on the quality of service?		
37	Whether the SLA/agreement between SBI and the Processor contains these clauses:	a. Right to Audit to SBI with scope defined	
		b. Adherence by the vendor to SBI Information Security requirements including regular reviews, change management, port management, patch management, backup management, access management, log management etc.	
		c. Right to recall data by SBI.	
		d. Regulatory and Statutory compliance at vendor site. Special emphasis on section 43A of IT Act 2000 apart from others.	
		e. Availability of Compensation clause in case of any data breach or incident resulting into any type of loss to SBI, due to vendor negligence.	
		f. No Sharing of data with any third party without explicit written permission from competent Information Owner of the Bank including the Law Enforcement Agencies.	

XXXXX